



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9946 (EXTENSION)
ORIGINAL November 10, 1988

In accordance with 49 CFR 107.109 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9946 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1999. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.109. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts

Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

4/28/97
(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Praxair Puerto Rico, Inc.
Gurabo, PR

April 1, 1997



U.S. Department
of Transportation

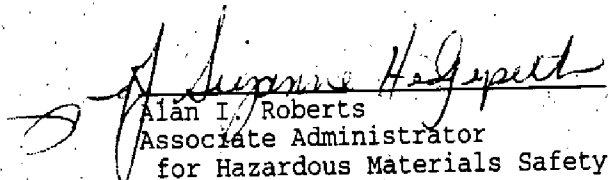
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9946 (EXTENSION)
ORIGINAL November 10, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9946 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 31 1995

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

Gas Tech, Inc.
Indianapolis, IN

June 8, 1995

Praxair Puerto Rico, Inc.
Gurabo, PR

June 27, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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400 Seventh Street, S.W.
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NOV 10 1988

DOT-E 9946

1. Union Carbide Corporation, Danbury, Connecticut, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to transport or offer for transportation in commerce, packages prescribed herein of compressed gas cylinders described in paragraph 7 below subject to the limitations and special requirements specified herein. This exemption authorizes the use of a pneumatically operated valve of a packless design with non-perforated diaphragms backed by an additional gasketed sealing system on cylinders containing a Poison A material, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on an application from Union Carbide Corporation dated March 21, 1988 and supplemental information dated June 10 and July 12, 1988, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Poison A materials described in 49 CFR 173.326 specifically identified to and acknowledged in writing by, the Office of Hazardous Materials Transportation (OHMT) prior to first shipment.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic description, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.327 (a).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a cylinder approved for use in 49 CFR Subpart H for Poison A materials. Each cylinder charged with corrosive commodities may be equipped with a pneumatically operated valve that is of packless type with non-perforated diaphragms, backed by an additional gasketed sealing system, closed by a force no greater than that required for handwheel closure conforming with details and description in Union Carbide's application. Closure of the valves may be manual or by an actuator capable of remote activation. Each valve must be provided with a leak-tight solid cap during transportation. Design burst pressure of each valve must be at least 4 times intended service pressure. Three test valves of each design must be subjected to the following tests.

(1) Vibration test per Mil Std 45662. Test valves must show no physical damage or measurable leakage.

(2) Cycle test to service pressure for 5,000 times. Test valves must show no physical damage or measurable leakage.

(3) Severe temperature test. Test valves must remain leak tight up to 285 °F.

(4) Burst test. Internal moving parts and diaphragms of each test valve must withstand at least 2.0 times its service pressure

8. SPECIAL PROVISIONS.

- a. A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
- b. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.
- c. Drivers must have been instructed as to necessary safeguards and proper procedures to follow in the event of unusual delay, fire or accident.
- d. Each package must be prepared and shipped in accordance with 49 CFR Subpart H, as applicable for the lading.

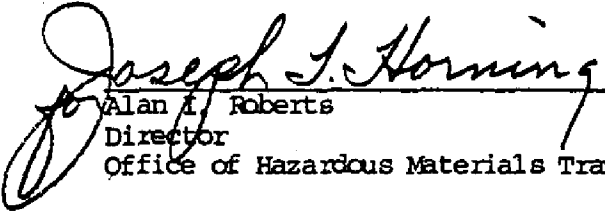
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. October 31, 1990.

Issued at Washington, D.C.:

NOV 10 1988

(DATE)


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA, USCG, FRA